

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Dale S. Fischer
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Perez, Joshua Gregorio
CDC No.: T97718
Case No.: BA242198
Date of Sentence: May 16, 2003

Dear Honorable Dale S. Fischer:

The purpose of this letter is to provide the court with authority to resentence Joshua Gregorio Perez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Perez was sentenced in 2003, and was convicted of section 245, subdivision (A)(2), Assault w/a Firearm on Person. The trial court sentenced inmate Perez on May 16, 2003. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Perez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Perez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

T97718

Hariff

7-10-03
T97718

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES			ORIGIN/FILED	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: PEREZ, JOSHUA GREGORIO ✓		DOB: 11-12-81	BA242198 ✓	-A
AKA:				-B
CII#: A11851681		☐ NOT PRESENT		-C
BOOKING #: 7561214		☒ AMENDED ABSTRACT	OCT 08 2003 LOS ANGELES SUPERIOR COURT	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT				
DATE OF HEARING 05-16-03 ✓	DEPT. NO. 120	JUDGE DALE S FISCHER		
CLERK S BENSON	REPORTER C TAYLOR	PROBATION NO. OR PROBATION OFFICER X1846736		
COUNSEL FOR PEOPLE K B LAKE		COUNSEL FOR DEFENDANT T L MELNIK ☐ APPTD.		

1. Defendant was convicted of the commission of the following felonies:

- ☐ Additional counts are listed on attachment
 (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, Y)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Pursuant to Penal Code 654)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
1	PC	245(A)(2)	ASSAULT W/FIREARM ON PERSON	2003	05-16-03			X	M							6	
2	PC	245(A)(2)	ASSAULT W/FIREARM ON PERSON	2003	05-16-03			X	M	X						(6)	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
1	12022.5(A)(D)	10	186.22(B)(1)	5	12022.7(A)	3			18
2	12022.5(A)(D)	(10)	186.22(B)(1)	(5)					

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☒ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: **24**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.			
DEFENDANT: PEREZ, JOSHUA GREGORIO			
BA242198	-A	-B	-C
			-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$4,800.	per PC 1202.4(b) forthwith per PC 2085.5;	\$4,800.	per PC 1202.45 suspended unless parole is revoked.
Case B: \$	per PC 1202.4(b) forthwith per PC 2085.5;	\$	per PC 1202.45 suspended unless parole is revoked.
Case C: \$	per PC 1202.4(b) forthwith per PC 2085.5;	\$	per PC 1202.45 suspended unless parole is revoked.
Case D: \$	per PC 1202.4(b) forthwith per PC 2085.5;	\$	per PC 1202.45 suspended unless parole is revoked.

b. Restitution per PC 1202.4(f):

Case A: \$	☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case B: \$	☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$	☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$	☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

(*List victim name(s) if known and amount breakdown in item 11, below.)

c. Fine(s):

Case A: \$	per PC 1202.5. \$	per VC 23550 or	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case B: \$	per PC 1202.5. \$	per VC 23550 or	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case C: \$	per PC 1202.5. \$	per VC 23550 or	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case D: \$	per PC 1202.5. \$	per VC 23550 or	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS

d. Lab Fee and Drug Program Fee:

Case A: Lab Fee: \$	per HS 11372.5(a) for counts	☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case B: Lab Fee: \$	per HS 11372.5(a) for counts	☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case C: Lab Fee: \$	per HS 11372.5(a) for counts	☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case D: Lab Fee: \$	per HS 11372.5(a) for counts	☐ Drug Program Fee of \$150 per HS 11372.7(a).

10. TESTING

a. ☐ AIDS pursuant to PC 1202.1 b. ☐ DNA pursuant to PC 296 c. ☐ other (specify):

11. Other orders (specify):

DEFENDANT ORDERED TO PROVIDE TWO SPECIMENS OF BLOOD, A SALIVA SAMPLE, A RIGHT THUMBPRINT, AND A FULL PALM PRINT IMPRESSION OF EACH HAND FOR LAW ENFORCEMENT IDENTIFICATION ANALYSIS AS SET FORTH IN SECTION 296(A) PC.

THE LOS ANGELES COUNTY SHERIFF'S DEPARTMENT INMATE RECEPTION CENTER-DNA COLLECTION SITE IS HEREBY ORDERED TO COMPLY WITH THE SAMPLE COLLECTION PROCEDURES DESCRIBED IN SECTIONS 296 AND 296.1 PC. SUCH SAMPLES SHALL BE OBTAINED IN A MEDICALLY APPROVED MANNER.

THE SHERIFF IS ORDERED TO RETURN THE EXECUTED 296 PC ORDER TO THE COURT.

12. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
e. ☐ other (specify):

13. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	134	117	☐ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
05-16-03		DMH	CDC
		[]	[]

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

D. HUNTER

DATE

10-08-03

